

Tentative Rulings
July 13, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

19. *Deserna v. Jones Ontario Acquisition, LLC, et al*, Case No. CIVSB2605509
Defendant Jones Ontario's Motion for Judgment on the Pleadings
7/13/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

This is a lemon law case. Plaintiff alleges that she leased a 2003 vehicle on January 21, 2023. She asserts that, despite the vehicle being covered by warranties, it had certain defects and irregularities. Defendants are alleged to have failed to repair the vehicle within a reasonable time or to provide a replacement or make restitution. As such, Plaintiff filed suit on February 19, 2026, alleging (1) violation of Song-Beverly Act - breach of express warranty (against Mercedes USA only); (2) violation of Song-Beverly Act - breach of implied warranty (against Mercedes USA only); and (3) negligent repair (against Jones Ontario only).

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

For a claim of negligent repair, the traditional negligence elements apply, i.e., (1) legal duty, (2) breach of the legal duty; (3) causation; and (4) damages. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) A person who undertakes the repair of a product owes a duty to do so without negligence. (Civ. Code, § 1796.5.)

Negligence – Negligence may be pleaded generally. (*Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal.2d 149, 154-155.) In California, "it is sufficient to allege the negligence in general terms, specifying, however, the particular act alleged to have been negligently done." (*Id.* at p.155) As a general rule, a negligence cause of action is not subject to a heightened pleading standard. (See *Hoyem v. Manhattan Beach City Sch. Dist.* (1978) 22 Cal.3d 508, 514 ["Under well established principles, . . . general allegations of negligence, proximate causation and resulting injury and damages suffice to state a cause of action."].)

It follows that in cases involving a car repair facility that allegedly performed repairs in a negligent fashion (e.g., with an absence of care), it is sufficient to allege the defendant

negligently repaired the vehicle without alleging how or in what respect. Thus, here, Plaintiffs allege sufficient facts to meet negligence pleading standards.

Economic Loss Rule – Defendant Jones Ontario also argues that the economic loss rule bars Plaintiff’s negligent repair cause of action. (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483.) Economic losses are “damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits — without any claim of personal injury or damages to other property.” (*Sacramento Regional Transit Dist. v. Grumman Flexible* (1984) 158 Cal.App.3d 289, 294.) As such, Defendant Jones Ontario asserts that the negligent repair claim fails.

As for Defendant Jones Ontario’s economic loss rule argument, it is insufficient to grant the JOP: The economic loss rule provides that, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) “California decisional law has long recognized that the economic loss rule does not necessarily bar recovery in tort for damage that a defective product (e.g., a window) causes to other portions of a larger product (e.g., a house) into which the former has been incorporated.” (*Jimenez, supra*, 29 Cal.4th at pp. 483-484.) In *Sheen, supra*, 12 Cal.5th 905, 923, the California Supreme Court discussed one circumstance in which the economic loss rule applies “involves parties who are in contractual privity.” In this case, however, there is no allegation demonstrating Plaintiff had a contractual relationship with Jones Ontario.

Nonetheless even if it did, there is another “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.” (*Sheen, supra*, 12 Cal.5th at p.933.) As *Sheen* illustrated:

In that context, . . . a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide ‘careful efforts’ in rendering contracted for services, but most clients do not know enough to protect themselves by inspecting the professional’s work or by other independent means. Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the careful efforts they have contracted to provide.

(*Sheen, supra*, 12 Cal.5th at p. 933 [internal citations omitted].)

Here, Plaintiff alleges that Jones Ontario violated an independent legal duty to repair the vehicle using ordinary care and skill according to industry standards. Finally, it also is not clear from the face of the Complaint that negligent acts were associated with the defective product.
